



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 3, 2021

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201906434 regarding Sergeant Christian Carlin, Tax No. 941501 (DADS No. 2021-23481) and Police Officer Jonathan Connors, Tax No. 966000 (DADS No. 2021-23482)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter in its entirety and determined that the penalty sought by the Civilian Complaint Review Board ("CCRB") is disproportionate to the misconduct committed by Sergeant Carlin and Police Officer Connors.

Sergeant Carlin and Police Officer Connors were faced with a large and hostile crowd of individuals who were refused to comply with officers' orders to disperse and instead doused officers with unknown liquids from water guns and buckets.

The interaction between Sergeant Carlin, Police Officer Connors, and additional Members of Service were captured by multiple Body-Worn Cameras as well as a nearby surveillance camera. All of the available video footage shows a chaotic situation during which officers are doused with then-unknown liquids, unruly individuals refused to comply with officers' instructions, and Sergeant Carlin is assaulted while attempting to effectuate a lawful arrest.

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The fact that the liquids ultimately turned out to be water is of little consequence as at the time the officers did not know what the liquids were. Sergeant Carlin attempted to remove a water gun from an individual in the crowd who had repeatedly sprayed him with a liquid and then refused to voluntarily surrender the water gun. The individual instead elected to physically resist Sergeant Carlin's attempts to confiscate the water gun and to place the individual under arrest. As a result, Sergeant Carlin was himself assaulted.

Sergeant Carlin's actions to remove the water gun are not improper given the extraordinary circumstances with which he was faced. Sergeant Carlin's use of physical force to attempt to restrain and arrest an individual who sprayed him with a then-unknown liquid is altogether appropriate.

Subsequently, Sergeant Carlin and Police Officer Connors could be heard using discourteous language toward certain individuals in the crowd. This language was used in the immediate aftermath of a chaotic and at times violent confrontation between Members of the Service and the public. While inappropriate, the use of such language does not warrant an imposition of a Command Discipline.

Instead, in the interest of progressive discipline, and taking into account the excellent employment histories of Sergeant Carlin and Police Officer Connors, each officers would benefit more from receiving Instructions from their Commanding Officer.

Therefore, the Police Commissioner determined that Sergeant Carlin will receive No Disciplinary Action for the alleged violation of Patrol Guide Procedure 221-02 (Use of Force). Additionally, he will receive Instructions from his Commanding Officer in Administrative Guide Procedure 304-11 (Compliance with New York City Right to Know Act/Discourtesy).

Finally, Police Officer Connors will receive Instructions from his Commanding Officer in Administrative Guide Procedure 304-11 (Compliance with New York City Right to Know Act/Discourtesy).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office